Real-World Case Scenarios

Minnesota Digital Due Process Act

Purpose

This document provides practical examples of how automated decision systems and predictive analytics may affect individuals in real governmental contexts.

These scenarios are illustrative and reflect common categories of automated or algorithm-assisted decision-making.

Scenario 1 — Benefits Eligibility Flag

A state benefits system automatically flags an individual for potential fraud based on pattern analysis of past transactions.

- No human reviews the underlying context before action is taken
- Benefits are suspended pending further review
- Individual is not informed that an automated system initiated the flag

Policy Concern:

Automated flagging results in immediate harm without prior human verification or evidentiary review.

Scenario 2 — Predictive Risk Scoring in Public Safety

A predictive analytics tool assigns a "high risk" classification to an individual based on associations, location history, and prior contact records.

- The individual is not accused of any specific crime
- The classification contributes to increased surveillance or investigative attention

Policy Concern:

Risk-based classification influences governmental attention without individualized conduct-based evidence.

Scenario 3 — Automated Licensing Determination

An occupational licensing system uses algorithmic screening to evaluate applications.

- The system recommends denial based on statistical inference or incomplete data correlation
- The applicant receives a generic denial notice without explanation of algorithmic influence

Policy Concern:

Opaque automated screening limits meaningful opportunity to understand or challenge the decision.

Scenario 4 — Enforcement Prioritization System

An agency uses an AI system to prioritize enforcement actions.

- The system ranks individuals or entities by predicted likelihood of violation
- Human agents focus enforcement resources based primarily on these rankings

Policy Concern:

Predictive prioritization can indirectly determine outcomes without formal adjudication.

Scenario 5 — Automated Eligibility Disqualification

A digital eligibility system automatically disqualifies applicants based on data mismatches or inferred inconsistencies.

- No human confirms whether the mismatch is valid or material
- Applicant must initiate appeal after denial

Policy Concern:

Administrative error or inference may trigger adverse action without prior human review.

Key Legislative Issue Across All Scenarios

In each case:

- Automated systems contribute materially to decision-making
- Individuals may not receive meaningful explanation
- Human review may occur only after adverse action
- Decisions may rely on inference or prediction rather than direct evidence

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Core Policy Principle

The Minnesota Digital Due Process Act does not prohibit the use of automated systems.

It requires that:

> No individual shall be subject to material adverse governmental action solely on the basis of an automated prediction, algorithmic classification, or AI-generated output without meaningful human review and independent supporting evidence.

Legislative Objective

To ensure that:

- Government remains accountable for decisions affecting individuals
- Automated systems do not replace evidentiary standards
- Individuals retain meaningful ability to understand and challenge decisions
- Constitutional due process remains effective in digital environments